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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ASSAL LESTER; JESSE DEAN; and NEVAEH TORRES,

Plaintiff,

vs.

UNOSTATO LLC; ARKBEC LLC; KELVIN COURT MANAGEMENT CORPORATION; and DOES 1 THROUGH 50, inclusive,

Defendants.

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CASE NO.: 26VECV03156

ORDER OVERRULING DEFENDANTS UNOSTATO LLC AND ARKBEC LLC’S DEMURRER

I. BACKGROUND

Plaintiffs Assal Lester (“Lester”), Jesse Dean (“Dean”), and Neveah Torres (“Torres”) jointly, “Plaintiffs”) bring this habitability action against Defendants Unostato LLC (“Unostato”), Arkbec LLC (“Arkbec”), and Kelvin Court Management Corporation (“Kelvin”). Plaintiffs resided at 7230 Kelvin Avenue, Apartment 6, Winnetka, California 91306 (the “Property”). Lester entered into the lease agreement for the Property as Assal Fakhredin. Plaintiffs allege Unostato is the landlord, Arkbec was a co-landlord, and Kelvin is the homeowners association. Plaintiffs allege Unostato and Arkbec presented Plaintiffs with two options regarding the mold contamination: vacate the Property for a remediation period or sign a Release of Liability Agreement releasing Defendants from all liability for health issues, personal injuries, or property damage resulting from the mold. Plaintiffs declined to sign the Release. Subsequently, Unostato and Arkbec filed an unlawful detainer action against Lester.

Plaintiffs allege on or about May 7, 2025, the Los Angeles County Sheriff’s Department served Plaintiffs with a Notice to Vacate, which they complied with. Plaintiffs bring this action against Defendants for their failure to cure the habitability defects and to return any portion of Plaintiffs’ \$2,100.00 security deposit.

Unostato and Arkbec demur to the Complaint.

II. PROCEDURAL HISTORY

On May 29, 2026, Plaintiffs filed a Complaint alleging (1) Negligence; (2) Breach Of Implied Warranty Of Habitability; (3) Breach Of Covenant Of Quiet Enjoyment; (4) Private Nuisance; (5) Negligence Per Se; (6) Retaliatory Eviction (Civil Code §

1942.5); (7) Breach Of Contract – Wrongful Withholding Of Security Deposit (Civil Code § 1950.5); (8) Intentional Infliction Of Emotional Distress; (9) Unfair Competition (Business And Professions Code § 17200).

On July 13, 2026, Kelvin filed an Answer.

On August 6, 2026 Unostato and Arkbec filed their separate Demurrers.

As of September 8, 2026, no opposition has been filed.

III. MEET AND CONFER

Before filing a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Unostato and Arkbec's counsel attests he exchanged emails and phone calls with Plaintiffs' counsel prior to filing the instant Demurrers. (See Declarations of Stan Markov filed August 6, 2026, ¶ 3.) Thus, the Court finds the demurring parties complied with their meet and confer obligation.

IV. LEGAL STANDARD

A demurrer may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "[T]he court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." (Id.) Allegations are to be liberally construed. (See Code Civ. Proc. § 452.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan*, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court*, (1984) 153 Cal.App.3d 902, 905.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

V. JUDICIAL NOTICE

"Any request for judicial notice must be made in a separate document listing the specific items for which notice is requested and must comply with rule 3.1306(c)." (Rules of Court, rule 3.1113(l).) "A party requesting judicial notice of material under Evidence Code sections 452 or 453 must provide the court and each party with a copy of the material." (Id., rule 3.1306(c).)

Unostato and Arkbec (jointly, "Defendants") request judicial notice of the same documents in the body of their Demurrers. Although this request is not made separately, the Court grants Defendants' request for judicial notice as Defendants served Plaintiffs' counsel with the request and documents. (See Evid. Code § 452(d).) The Court takes judicial notice only as to the existence, content, and authenticity of such documents; it does not take judicial notice of the truth of the factual matters

asserted therein. (See *Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400.)

VI. ANALYSIS

As an initial matter, the Court notes there are two separate demurrers filed by Defendants with two different hearing dates. The Court will consider the two demurrers together as they raise the same arguments and will remove the September 14, 2026, hearing date from its calendar since the deadline for Plaintiffs' opposition to that hearing date has passed. However, the Court will disregard pages 10:27-15:9 of the demurrer filed by Arkbec because it appears that its counsel inadvertently raised arguments pertaining to another case which was initiated with a verified complaint; Plaintiffs' Complaint here is not verified. In addition, counsel's signature block here is not only unsigned, but refers to individuals who are not parties here.

Next, Defendants demur to all causes of action on grounds the Complaint fails to state a cause of action for unlawful detainer. (See Notice at 2:9-18; Dem. at 6:207:6.) This argument is unavailing as Plaintiffs plead no such cause of action.

Defendants also demur to causes of action 1-6 and 8-9 on grounds they are barred by res judicata by the unlawful detainer action, Case No. 25VEUD00098 (the "UD Case"). (See Dem. at 6:24-25.) Defendants argue the habitability issues Plaintiffs raise in this action were raised in the UD Case; and the trial court entered judgment in favor of Unostato after finding Lester failed to grant access to Unostato's agents to the Property to remedy the conditions. (See *id.*, at 7:1-3; RJN, Ex. D.) Defendants argue causes of action 1-6 and 8-9 are therefore barred by claim and issue preclusion.

A. Claim Preclusion

The primary aspect of res judicata is claim preclusion and the secondary aspect of res judicata is issue preclusion. (See *DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) "Claim preclusion 'prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.' [Citation.] Claim preclusion arises if a second suit involves: (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit." (*Id.*)

Defendants argue the same causes of action in this case are based on the same primary right resolved by the UD Case, i.e. the right to inhabit a habitable unit. (See Dem. at 8:1-3.) Defendants argue the UD Case established Lester refused to grant access to the unit for Unostato's agents to repair the habitability defects, and such failure to remedy supports her causes of action in the instant case. (See *id.*, at 8:8-10.) Defendants argue the second element is satisfied because Lester was the defendant in the UD Case. As to the other Plaintiffs, Defendants argue they were in privity with Lester as co-occupants and could have filed a Prejudgment Right of Possession form to litigate their habitability defenses alongside Lester. (See *id.*, at 8:18-25, 9:22-23.) Defendants argue the third element is satisfied because Lester was able to present evidence of the alleged violations during the UD Case. (See *id.*, at 8:11-12.)

The elements of claim preclusion are not satisfied. The first element is not satisfied. Plaintiffs did not previously file any cause of action seeking compensation for the same harm sought in this action. The UD Case was filed by Unostato against Lester for possession of the Property after Lester failed to comply with the 3-day notice to perform covenants or quit. (See RJN, Ex. G.) In the instant action, Plaintiffs affirmatively raise their habitability-based claims to recover for resulting physical harm and personal injury. (See Compl., ¶ 24, 29.) The UD Case only bars relitigating a claim for possession. In the context of unlawful detainer actions, breach of the warranty of habitability is an affirmative defense to a failure to pay case, not a separate cause of action unto itself and wholly unavailable to an unlawful detainer predicated on a theory of breach of covenant. Thus, this action does not seek to relitigate the same causes of action as were asserted in the the 2025 UD Case.

The second element is not satisfied as to Arkbeck as it is not clear how this entity was in privity with Unostato such that it can invoke the judgment in the 2025 UD Case against any Plaintiff. (See Compl., ¶ 5; see *Grande v. Eisenhower Med. Ctr.* (2022) 13 Cal.5th 313, 324; *DKN Holdings*, 61 Cal.4th at 824 ["privity requires the sharing of 'an identity or community of interest,' with 'adequate representation' of that interest in the first suit".]) Defendants also present no authority establishing Dean and Torres were in privity with Lester solely by virtue of occupying the Property with Lester, who signed the lease. The Court does

not find Lester shares an identity with either Dean or Torres such that she could have adequately represented their interest and related damages in a prior action. Thus, the second element is not satisfied, and Defendants do not show the Complaint's causes of action 1-6 and 8-9 are barred by claim preclusion. Accordingly, the Court OVERRULES Defendants' Demurrer on the ground of claim preclusion.

B. Issue Preclusion

"[I]ssue preclusion applies: (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (DKN Holdings, 61 Cal.4th at 825.) "Issue preclusion differs from claim preclusion in two ways. First, issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues. Second, unlike claim preclusion, issue preclusion can be raised by one who was not a party or privy in the first suit." (Id., 61 Cal.4th at 824.)

Defendants argue the UD Case litigated the same issue of habitability, which Plaintiffs' causes of action 1-6 and 8-9 are based upon. (See Dem. at 10:7-14.) Defendants argue there was a final judgment. (See id., at 10:15.) Defendants argue Lester was a named defendant in the 2025 UD Case and Dean and Torres were in privity with Lester as co-occupants of the Property. (See id., at 11:4-7.)

The Court finds the elements of issue preclusion are not satisfied. The UD Case litigated the issue of possession after Lester's failure to comply with the 3-day notice to perform covenants or quit. (See RJN, Ex. G.) That action did not litigate Plaintiffs' habitability issues, some of which arose as early as 2022, and related damages asserted in this action. (See Compl., ¶¶ 13-16.) Additionally, as stated above, Defendants present no authority establishing Dean and Torres were in privity with Lester solely by virtue of occupying the Property with Lester. Thus, the elements of issue preclusion are not satisfied, and Defendants do not show that the Complaint's causes of action 1-6 and 8-9 are barred by issue preclusion. The Court OVERRULES Defendants' Demurrer on the ground of issue preclusion.

VII. CONCLUSION

Based on the foregoing, the Court OVERRULES Unostato' and Arkbec's Demurrer to the first through sixth and eighth through ninth causes of action.

Unostato and Arkbec are ordered to file an Answer only on or before September 18, 2026.

IT IS SO ORDERED.

DATED: September 8, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.